

SENATE No. 2357

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to tolls on the roadways of the commonwealth.

PETITION OF:

NAME:

Brendan P. Crighton

DISTRICT/ADDRESS:

Third Essex

SENATE No. 2357

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 2357) of Brendan P. Crighton for legislation relative to tolls on the roadways of the commonwealth. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2216 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to tolls on the roadways of the commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of Chapter 6C of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, the words "fix and revise from time to time
3 and charge and collect tolls for transit over the metropolitan highway system and the turnpike",
4 the first time they appear, and inserting in place thereof the following:- "charge and collect tolls
5 for transit over the metropolitan highway system and the turnpike; said toll rates shall not be
6 increased from the rates in place on January 1, 2025".

7 SECTION 2. Subsection (a) of Section 13 of said Chapter 6C is hereby amended by
8 striking out, in line 2 the words "fix and revise" and by inserting in place thereof the following:-
9 "reduce the".

SECTION 3. Said subsection (a) of said Section 13 of said Chapter 6C is hereby further amended by striking out, in lines 5 to 14, inclusive, the words "Such tolls shall be so fixed and adjusted as to provide, at a minimum, funds sufficient with other revenues, if any, to pay: (i) costs incurred in furtherance of this chapter related to the turnpike including, but not limited to, the cost of owning, maintaining, repairing, reconstructing, improving, rehabilitating, policing, using, administering, controlling and operating the turnpike; and (ii) the principal of, redemption premium, if any, and the interest on notes or bonds relating to the turnpike as the same shall become due and payable and to create and maintain reserves established for any of the department's corporate purposes."

SECTION 4. Subsection (b) of said Section 13 of said Chapter 6C is hereby amended by striking out, in line 44, the words "fix and revise" and by inserting in place thereof the following:- "reduce the".

SECTION 5. Said subsection (b) of said Section 13 of said Chapter 6C is hereby further amended by striking out, in lines 47 to 58, inclusive, the words "Such tolls shall be so fixed and adjusted as to provide, at a minimum, funds sufficient with other revenues, if any, to pay: (i) costs incurred in furtherance of this chapter related to the metropolitan highway system including, but not limited to, the cost of owning, maintaining, repairing, reconstructing, improving, rehabilitating, policing, using, administering, controlling and operating the turnpike; and (ii) the principal of, redemption premium, if any, and the interest on notes or bonds relating to the metropolitan highway system as the same shall become due and payable and to create and maintain reserves established for any of the department's corporate purposes."

SECTION 6. Notwithstanding any general or special law to the contrary, the Massachusetts Department of Transportation shall study and report on the feasibility of establishing all-electric tolling along state and interstate highways of the Commonwealth that are not currently subject to a toll. The report shall examine the several options available to the commonwealth to pursue additional tolls, including, but not limited to: (i) placement of all-electronic tolling gantries on roads in the Commonwealth that are not currently tolled; (ii) seeking a federal waiver for the placement of border tolls; (iii) reaching interstate or regional agreements for the placement of additional tolls; and (iv) the commonwealth's ability to establish border tolls in the event of proposed changes to federal law on interstate highway tolling. The department shall file its report along with any legislative recommendations with the house and senate committees on ways and means and the joint committee on transportation on or before December 31, 2025.